

COMMISSION IMPLEMENTING REGULATION (EU) No 288/2014

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of 25 February 2014

laying down rules pursuant to Regulation (EU) No 1303/2013 of the European Parliament and of the Council laying down common provisions on the European Regional Development Fund, the European Social Fund, the Cohesion Fund, the European Agricultural Fund for Rural Development and the European Maritime and Fisheries Fund and laying down general provisions on the European Regional Development Fund, the European Social Fund, the Cohesion Fund and the European Maritime and Fisheries Fund with regard to the model for operational programmes under the Investment for growth and jobs goal and pursuant to Regulation (EU) No 1299/2013 of the European Parliament and of the Council on specific provisions for the support from the European Regional Development Fund to the European territorial cooperation goal with regard to the model for cooperation programmes under the European territorial cooperation goal

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 1303/2013 of the European Parliament and of the Council of 17 December 2013 laying down common provisions on the European Regional Development Fund, the European Social Fund, the Cohesion Fund, the European Agricultural Fund for Rural Development and the European Maritime and Fisheries Fund and laying down general provisions on the European Regional Development Fund, the European Social Fund, the Cohesion Fund and the European Maritime and Fisheries Fund and repealing Council Regulation (EC) No 1083/2006 (1), and in particular Article 96(9) thereof,

Having regard to Regulation (EU) No 1299/2013 of the European Parliament and of the Council on specific provisions for the support from the European Regional Development Fund to the European territorial cooperation goal (2), and in particular Article 8(11) thereof,

After consulting the Coordination Committee for the European Structural and Investment Funds established by Article 150(1) of Regulation (EU) No 1303/2013,

Whereas:

(1)

It is necessary to lay down two models, one for operational programmes under the Investment for growth and jobs goal and one for cooperation programmes under the European territorial cooperation goal. Each model will set out uniform conditions for the presentation of information in each section of the operational or cooperation programmes. This is necessary to ensure that information is consistent, comparable and, where necessary, can be aggregated.

(2)

The provisions in this Regulation are closely linked, since they deal with provisions concerning the content of programmes under cohesion policy. To ensure coherence between those provisions, which should enter into force at the same time, and to facilitate a comprehensive view and compact access to them by all Union residents, it is desirable to include the provisions setting out the models for programmes under cohesion policy to be established by implementing acts required by Regulation (EU) No 1303/2013 and Regulation (EU) No 1299/2013 in a single Regulation.

(3)

The models will form the basis for the development of the electronic data exchange system referred to in Article 74(4) of Regulation (EU) No 1303/2013 as regards the content and submission of operational programmes and cooperation programmes. They should therefore establish the manner in which data on operational programmes and cooperation programmes will be entered into the system for electronic data exchange. However, this should not affect the final presentation of operational programmes and cooperation programmes, including the layout of text and tables, since the electronic data exchange system is to allow for different structuring and presentation of the data that has been entered in this system.

(4)

The model for operational programmes should correspond to the structure of the operational programme set out in Article 96 of Regulation (EU) 1303/2013 and the model for cooperation programmes should correspond to the structure of the cooperation programme set out in Article 8 of Regulation (EU) No 1299/2013. In order to ensure consistent conditions for the entry of data, the models should establish the technical characteristics of each field in the electronic data exchange system. In addition to the structured data, the models should provide for the option to submit unstructured information in the form of compulsory or non-compulsory annexes. For such annexes it is not necessary to establish technical characteristics.

(5)

To ensure the correct application of Regulation (EU) No 1303/2013 and of Regulation (EU) No 1299/2013 the models should identify information which is subject to a Commission implementing decision approving the programme. In addition, the model for the operational programmes under the Investment in growth and jobs goal should also identify elements which may be presented in the Partnership Agreement only, in accordance with Article 96(8) of Regulation (EU) No 1303/2013.

(6)

It is also necessary to specify sections of the model for operational programmes under the Investment in growth and jobs goal which should not be completed by the Member States if operational programmes are dedicated exclusively to technical assistance or to the Youth Employment Initiative as referred to in Article 16 of Regulation (EU) No 1304/2013 of the European Parliament and of the Council (3). As the content requirements for the operational programmes dedicated to joint uncapped guarantee and securitization financial instruments in favour of micro, small and medium-sized enterprises as defined in Commission Recommendation 2003/361/EC (4) and implemented by the European Investment Bank represent a subset of the requirements for the content of other programmes under the Investment in growth and jobs goal, it is necessary to identify the fields of the respective model which should be included in such dedicated programmes.

(7)

In order to allow for the prompt application of the measures provided for in this Regulation, this Regulation should enter into force on the day following that of its publication in the Official Journal of the European Union,

HAS ADOPTED THIS REGULATION:

Article 1

1. The model for preparing operational programmes under the Investment for growth and jobs goal is set out in Annex I to this Regulation.

2. The model for preparing cooperation programmes under the European territorial cooperation goal is set out in Annex II to this Regulation.

Article 2

This Regulation shall enter into force on the day following that of its publication in the Official Journal of the European Union.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 25 February 2014.